

MURDER OF FRED HAMPTON DETAILED

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Courtroom Statement By Johnny Spain At S.Q.6 Sentencing

"THIS TRIAL WILL NOT STOP US"



"I reject this insane tradition. . . . I have all of the future standing with me—the children—to resist what we as a people are no longer willing to tolerate." **JOHNNY SPAIN**



BPINS photo

(San Rafael, Calif.) - Chained and shackled to his chair as he had been from the beginning of the lengthy proceedings, separated from his friends and supporters by a vision-distorting plexiglass wall, San Quentin 6 defendant and Black Panther Party member Johnny Larry Spain last Friday nonetheless transcended the gross inhumanity of his situation in delivering one of the most eloquent and forceful courtroom condemnations of the American judicial system heard in modern times.

As expected, when Spain concluded, he was sentenced to two terms of life in prison for surviving the August 21, 1971, incident in which his closest comrade, Black Panther Party Field Marshal George Jackson, was assassinated.

Convicted along with two other defendants on August 12 following a trial which his attorney, Charles Garry, loudly protests was "not fair and impartial," Spain, 27, was sentenced on Friday, October 1, to two terms of life imprisonment for the alleged murder of two White San Quentin guards and five to 10 years for the charge of conspiracy to escape. The life terms will run concurrently, while the conspiracy charge was stayed, pending appeal.

In a surprise move — obviously designed to create a semblance of justice but which literally shocked the entire courtroom — presiding trial judge Henry Broderick announced a suspended sentence and three years' probation for defendant David Johnson. The judgement raises the possibility that Johnson, 29, who

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